

Justification for Other than Full and Open Competition
Bureau of Land Management
FAR 13.106-1(b)(1) Simplified Acquisitions

Inyo California Towhee Surveys 2025/2026

PR 0044012820

1. Identification of the agency and the contracting office.

Bureau of Land Management, Ridgecrest Field Office

2. Description of supply or service required to meet the agency's needs.

The service required a targeted survey of federally listed Inyo California towhee (*Melospiza crissalis eremophilus*) on Bureau of Land Management (BLM) lands. Work performed under this PWS will support continued management of this species in accordance with the Endangered Species Act (ESA), the National Environmental Policy Act, and Sikes Act. This survey effort is consistent with the applicable land use plans (California Desert Conservation Act (CDCA), as amended) and will reflect management and study methods developed for Inyo California towhee in coordination with the U.S. Fish & Wildlife Service (USFWS) and other stakeholders.

3. The rationale or circumstances for limiting competition.

The survey and reporting effort will entail a combined approach with a concurrent effort being conducted under adjacent NAWSCS jurisdiction. The purpose of the joint-survey effort is to determine population estimates for the species using extrapolated data from all survey areas within representative habitat. The findings of this effort will provide information on nesting bird numbers that will aid in conservation of this species and provide the USFWS with valuable information to aid with a potential delisting of the species.

The Principal Investigator [REDACTED] has been coordinating extensive bird surveys for the BLM and USFWS for 17 years. This requirement is a follow-on to 140L1224P0014, that was recently completed. Using this sole source contractor will allow data being provided to BLM to be consistently collected and compiled with these past data collection efforts. Using this sole source contractor will allow data being provided to BLM to be consistently collected and compatible with these past data collection efforts. The proposed sole source has a unique capability to use this extensive database which they have acquired over the last 17 years to conduct population trend analyses which will allow the presently proposed work to be placed in a historical context. Therefore, the proposed vendor could qualify as a sole source under FAR 13.106-1(b)(1). It would be possible for these historical data to be transferred to an alternative vendor for analysis, but this would result in a substantial cost increase incurred by the BLM.

Using a Sole Source Contractor would keep the consistency in the surveys and data collected from the 2024 Spring.

Certification

The information contained in this Justification for Other than Full and Open Competition is certified accurate and complete to the best of my knowledge and belief.